INDIAN CONSTITUTION

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POWERS AND FUNCTIONS OF THE PRIME MINISTER

The powers and functions of the Prime Minister can be studied under the following heads:

The Prime Minister enjoys the following powers as head of the Union council of ministers:

In Relation to the Council of Ministers

1. He recommends persons who can be appointed as ministers by the president. The President can appoint only those persons as ministers who are recommended by the Prime Minister.
2. He allocates and reshuffles various portfolios among the ministers.
3. He can ask a minister to resign or advise the President to dismiss him in case of a difference of opinion.
4. He presides over the meeting of council of ministers and influences its decisions.
5. He guides, directs, controls, and coordinates the activities of all the ministers.
6. He can bring about the collapse of the council of ministers by resigning from office.

Since the Prime Minister stands at the head of the council of ministers, the other ministers cannot function when the Prime Minister resigns or dies. In other words, the resignation or death of an incumbent Prime Minister automatically dissolves the council of ministers and thereby generates a vacuum. The resignation or death of any other minister, on the other hand, merely creates a vacancy which the Prime Minister may or may not like to fill.

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- **In Relation to the President**

The Prime Minister enjoys the following powers in relation to the President:

1. He is the principal channel of communication between the President and the council of ministers. It is the duty of the prime minister:

(a)to communicate to the President all decisions of the council of ministers relating to the administration of the affairs of the Union and proposals for legislation;

(b)to furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for; and

(c) if the President so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

2. He advises the president with regard to the appointment of important officials like the attorney general of India, the Comptroller and Auditor General of India, chairman and members of the UPSC, election commissioners, the chairman and members of the finance commission, and so on.

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In Relation to Parliament

- The Prime Minister is the leader of the Lower House.

  In this capacity, he enjoys the following powers:

1. He advises the President with regard to summoning and proroguing of the sessions of the Parliament.

2. He can recommend the dissolution of the Lok Sabha to the President at any time.

3. He announces government policies on the floor of the House.

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Other Powers & Functions

In addition to the above-mentioned three major roles, the Prime Minister has various other roles. These are:

- 1 He is the chairman of the Planning Commission, National Development Council, National Integration Council, Inter-State Council and National Water Resources Council.
- 2. He plays a significant role in shaping the foreign policy of the country.
- 3. He is the chief spokesman of the Union government.
- 4. He is the crisis manager-in-chief at the political level during emergencies.
- 5. As a leader of the nation, he meets various sections of people in different states and receives memoranda from them regarding their problems, and so on. .
- 6. He is leader of the party in power.
- 7. He is political head of the services.

Thus, the Prime Minister plays a very significant and highly crucial role in the politico-administrative system of the country. Dr B R Ambedkar stated, ‘If any functionary under our constitution is to be compared with the US president, he is the Prime Minister and not the president of the Union’.

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- **PRIME MINISTER'S RELATIONSHIP WITH THE PRESIDENT**

The following provisions of the Constitution deal with the relationship between the President and the Prime Minister

1. Article 74 There shall be a council of ministers with the Prime Minister at the head to aid and advise the President who shall, in the exercise of his functions, act in accordance with such advice. However, the President may require the council of ministers to reconsider such advice and the President shall act in accordance with the advice tendered after such reconsideration.
2. Article 75 (a) The Prime Minister shall be appointed by the President and the other ministers shall be appointed by the president on the advice of the Prime Minister; (b) The ministers shall hold office during the pleasure of the president; and (c) The council of ministers shall be collectively responsible to the House of the People.
3. Article 78 It shall be the duty of the Prime Minister:

(a) to communicate to the President all decisions of the council of ministers relating to the administration of the affairs of the Union and proposals for legislation; • (b) to furnish such information relating to the administration of the affairs of the Union and proposals for legislation as the President may call for; and • (c) if the President so requires, to submit for the consideration of the council of ministers any matter on which a decision has been taken by a minister but which has not been considered by the council.

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Public, General Administration, Indian Administrative Service, Indian Police Service, Indian Forest Service, Other All India Service, District Revenue Officers, Police, Home, Special Initiatives and Welfare of Differently abled persons.

Minister for Water Resources

Minister for Municipal Administration

Minister for Rural Development

Minister for Higher Education

Minister for Public Works

Minister for Agriculture and Farmer's Welfare

Minister for Revenue and Disaster Management

Minister for Industries

Minister for Youth Welfare and Sports Development

Minister for Law

Minister for Housing and Urban Development

Minister for Co-operation

Minister for Information & Publicity

Minister for Social Welfare & Women Empowerment

Minister for Fisheries – Fishermen Welfare and Animal Husbandry

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Minister for Backward Classes Welfare
Minister for Tourism
Minister for Food and Civil Supplies
Minister for Electricity, Prohibition & Excise
Minister for Handlooms and Textiles
Minister for Health & Family Welfare
Minister for Commercial Taxes and Registration
Minister for Transport
Minister for Hindu Religious and Charitable Endowments
Minister for Finance and Human Resources Management
Minister for Milk & Dairy Development
Minister for School Education
Minister for Environment and Climate Change
Minister for Forests

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